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In brief: telecoms regulation in Nigeria

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Directly compare laws and regulations between jurisdictions here

Communications policy

Regulatory and institutional structure

Summarise the regulatory framework for the communications sector. Do any foreign ownership restrictions apply to communications services?

Nigeria's communications sector is primarily regulated by the Nigerian Communications Act 2003 (NCA) and the Wireless Telegraphy Act 1966 (WTA). The NCA established the Nigerian Communications Commission (NCC), which is charged with the responsibility of regulating the communications sector. The Minister of Communications, Innovation and Digital Economy (the Minister) under the NCA is vested with the responsibilities of the formulation, determination and monitoring of the general policy for the communications sector in Nigeria with a view to ensuring, among other things, the utilisation of the sector as a platform for the economic and social development of Nigeria, the negotiation and execution of international communications treaties and agreements, on behalf of Nigeria, between sovereign countries and international organisations and bodies, and the representation of Nigeria, in conjunction with the NCC, at proceedings of international organisations and on matters relating to communications. Under the NCA, the NCC is authorised to make and publish regulations and guidelines insofar as it is necessary to give effect to the full provisions of the NCA among other reasons.

The WTA sets out the framework for regulating the use of wireless telegraphy in Nigeria.

Foreign ownership restriction does not apply to the provision of communications services in Nigeria as a company with foreign ownership, as long as it is incorporated in Nigeria, is eligible to apply for a licence to provide communications services. Under the Nigerian Investment Promotion Commission Act, a foreign national can own up to 100% of a business or can invest in any business except those on the negative list. None of the communications services authorised in Nigeria is on the negative list.

Authorisation/licensing regime

Describe the authorisation or licensing regime.

Under the NCA, there are two broad licensing frameworks.

- An individual licence, which is a type of authorisation in which the terms, conditions and obligations, scope and limitations are specific to the service being provided. The NCC may issue an individual licence by auction through a first come, first served beauty contest or through standard administrative procedure. Presently, there are 26 licence types in the individual licence category. Some of the activities authorised by an individual licence are internet services, fixed wireless access, unified access services, electronic directory services, internet exchange, international gateway, international cable infrastructure and landing station services, collocation services and commercial basic radio communications network services.
- A class licence, which is a type of general authorisation in which the terms and conditions or obligations are common to all licence holders. It requires only registration with the NCC for applicants to commence operation. Some of the services subject to a class licence are sales and installation of terminal equipment (including mobile cellular phones and HF, VHF, UHF radio, etc), repairs and maintenance of telecoms facilities, cabling services, telecentres, cybercafés and the operation of public payphones.

In terms of issuing a licence by an administrative procedure, an entity intending to carry out a service subject to an individual licence shall apply to the NCC in the prescribed form upon the payment of the processing or administrative fee (usually 5% of the licence fee) and the licence fee, while a person intending to operate under a class licence is to submit a registration notice in the prescribed form and a registration fee of 10,000 naira to the NCC. In accordance with the NCA, a licence applicant must receive a response to the application within 90 days of submitting it. However, an offer letter is normally issued to applicants for a class licence if the application is complete. For individual licences, depending on the service and completeness of the required information, the conclusion of the process can take between four and 12 weeks. The duration of a licence depends on the type of service authorised or spectrum licensed.

The national carrier licence and international gateway licence are valid for 20 years. The unified access service licence is valid for a term of 15 years, while a digital mobile licence (DML) authorising the use of a specified mobile spectrum is valid for a term of 15 years. On the other hand, an internet service, paging, prepaid calling card and special numbering services licence are all valid for a term of five years. The licence fees payable depend on the type of service. Fees payable are fixed by the NCC and published on its website. In addition to licence fees, a prospective licensee is required to pay an administrative charge and, upon grant of the licence, a licensee shall pay an annual operating levy calculated on the basis of net revenue for network operators and gross revenue for non-network operators.

Fixed, mobile and satellite services are regulated and licensed under the NCA and to operate any of these services a licence must be obtained from the NCC. As these services are operator-specific, they fall under the individual licence category. In Nigeria, mobile telecommunications services are differentiated on the basis of whether the operator is authorised by a DML, fixed wireless access licence (FWAL) or unified access service licence. A DML authorises an operator to use appropriate equipment in a designated part of the electromagnetic spectrum and permits it to operate a network for the provision of public telecommunications services. In 2001, the NCC licensed four spectrum packages in the 900MHz and 1,800MHz bands to Mobile Telecommunications Limited (now Ntel), Econet Wireless Nigeria Limited (now Airtel) and MTN Nigeria Communications Limited for use in the provision of digital mobile services. These were later joined by Etisalat (now T2) and Globacom. An FWAL authorises an operator to use appropriate equipment in a designated part of the electromagnetic spectrum for a term of five years (with renewal for a further five years) and permits it to operate a network for the provision of public

telecommunications service. FWALs are granted on a regional basis to reflect the 36 Nigerian states and the federal capital territory, with operators wishing to achieve national coverage required to obtain licences in each of the licensing regions. In 2002, the NCC, in authorising FWAL services, also offered 42MHz paired in the 3.5GHz band, and a total of 28MHz paired in the 3.5GHz band across the 37 licensing regions of Nigeria to 22 new licensees.

In 2007, the NCC introduced the unified access service licence (UASL) scheme and allocated 40MHz of paired spectrum in the 2GHz band in four equal blocks of 10MHz paired spectrum. On the successful allocation of spectrum, the allottees were issued with a spectrum licence and where necessary, a UASL. The UASL authorises the holder to provide both fixed and mobile services including voice and data, and imposes special conditions requiring its holders to build and operate a telecommunications network to provide voice telephony, video services, multimedia services, web browsing, real-time video streaming, video surveillance, network gaming, email, SMS, file transfer, broadband data and location-based services, and other services that may be authorised, and that the 3G network be built and operated according to certain defined technical standards.

For broadband internet services, a wholesale wireless access service licence (WWASL) authorises the holder to construct, maintain, operate and use a network consisting of a mobile communication system, a fixed wireless access telecommunications system, or a combination of any of these systems comprising radio or satellite or their combination, within Nigeria, deployed for providing point-to-point or switched or unswitched point-to-multipoint communications for the conveyance of voice, data, video or any kind of message. The WWASL also authorises the holder to construct, own, operate and maintain an international gateway, while an infrastructure company licence authorises the holder to provide and operate on a wholesale basis an open-access metropolitan fibre network within a designated geographical area in Nigeria, in particular, among other things, to construct, maintain and operate fibre optic network facilities.

Commercial satellite services in Nigeria are regulated under the Commercial Satellite Communications Guidelines 2018 issued by the NCC. Under these Guidelines, there are two broad categories of commercial satellite service authorised:

- space segment operators (SSOs); and
- earth station operators (ESOs).

An SSO is authorised by a landing permit to beam its signal from a named geostationary satellite over the territory of Nigeria. The landing permit does not authorise the SSO to provide any other type of communications services directly to the last-mile user other than wholesale communications services to other communications operators licensed to provide services to last-mile users. The ESOs, on the other hand, are authorised under the applicable operational licence issued by the NCC to provide services to last-mile users in Nigeria.

Public Wi-Fi services are authorised pursuant to the Regulatory Guidelines for the Use of 2.GHz ISM Band for Commercial Telecoms Services. Under these Guidelines, Wi-Fi hotspots shall, inter alia, be deployed in the 2GHz industrial, medical and scientific band and must be registered and authorised by the NCC. In addition, commercial Wi-Fi hotspot operators must hold a licence for the provision of internet services.

In 2022, as part of its efforts to deepen the penetration and accessibility of communications services across Nigeria, NCC introduced the License Framework For the Establishment of Mobile Virtual Network Operators (MVNOs) in Nigeria. The MVNO licence is a five-tier classification that has distinctive services to be offered by the players in different tiers and may be implemented in any of the following ways.

- Tier 1 virtual operators: these are operators who are able to offer services to their customers without owning any switching or intelligent network infrastructure. They also do not control any numbering resources. They rely on the host licensee to provide wholesale capacity to enable them to deliver products and services to customers.
- Tier 2 simple facilities virtual operator: these are operators who do not have core switching and interconnect capabilities but can set up their own intelligent network (IN) to provide IN services to customers.
- Tier 3 core facilities virtual operator: these are operators who rely on the host licensee to provide radio access capacity at wholesale to deliver products and services to customers. They also own and manage core network elements (switching and interconnections). Revenue generation stems from both outbound and inbound calls that give it full control over its tariff structure.
- Tier 4 virtual aggregator or enabler: these are operators who are responsible for purchasing bulk capacity from a licensed network operator, and reselling it to multiple MVNOs, therefore streamlining the process of negotiating capacity agreements with said network operators. In underserved and unserved areas, it is permissible for these operators to provide core telecommunications services to customers by entering into a "shared rural coverage agreement" with a licensed spectrum owner.
- Tier 5 unified virtual operator: these are operators who are eligible to provide any of the services under tiers 1 to 4.

Tier 1 to 4 entrants are expected to pay 5% of the license fee as non-refundable administrative charges, while tier 5 entrants are to pay 50 million naira in non-refundable administrative fees prior to negotiations with the Mobile Network Operators (MNOs). MNOs are not eligible to apply for the MVNO licence. As at the date of this writing, the NCC has licensed 48 Mobile Virtual Network Operators across tiers 1 to 5.

Lastly, in January 2026, the NCC introduced the General Authorisation Framework (the Framework). The Framework establishes a flexible regulatory regime designed to respond to rapid technological change in the Nigerian communications sector. It introduces a structured mechanism to accommodate innovative services that fall outside existing licensing categories, through three principal instruments: Proof of Concept (PoC), Regulatory Sandbox, and Interim Service Authorisation (ISA). These instruments collectively enable controlled testing of emerging technologies in either lab-based or real-world environments, while allowing the Commission to assess technical feasibility, consumer impact, regulatory implications, and market readiness. The framework is intended to bridge regulatory gaps without undermining consumer protection, data security, or network integrity. Each authorisation type is defined by distinct operational parameters and durations. PoCs are limited to non-public, controlled testing environments for up to three months (renewable once), focusing on validating core functionality without live service delivery. Regulatory Sandboxes permit limited deployment to real users under strict supervision for up to nine months, enabling market testing within defined geographical and user constraints. ISAs provide a temporary pathway for pilot commercial services pending the development of formal licensing categories, with durations of up to nine months subject to renewal. All categories require compliance with reporting obligations, data protection and cybersecurity standards, consumer disclosure requirements, and NCC oversight, while maintaining the Commission’s discretion to modify, suspend, or revoke approvals where necessary.

The Framework further sets out eligibility requirements, application procedures, technical and financial disclosure obligations, and monitoring mechanisms. Applicants must demonstrate corporate registration, technical competence, financial capacity, regulatory compliance readiness, and adherence to applicable laws including the NCA and the Nigerian Data Protection Act 2023 (NDPA). A mandatory administrative fee of ₦250,000 applies, alongside potential spectrum and numbering charges. The Commission retains supervisory authority over all authorised

activities, including audit rights, reporting requirements, and enforcement powers to ensure compliance, safeguard consumers, promote fair competition, and facilitate the orderly transition from experimental authorisations to full licensing where appropriate.

Flexibility in spectrum use

Do spectrum licences generally specify the permitted use or is permitted use (fully or partly) unrestricted? Is licensed spectrum tradable or assignable?

Yes, in line with the Frequency Management Policy, an applicant for a commercial frequency licence from the NCC must also hold a commercial operating licence from the NCC (or must have submitted an application for an operating licence to the NCC). The commercial operating licence authorises the provision of a specific service for which the spectrum is intended to be used. An applicant for a frequency licence may also be given a frequency reservation pending the outcome of the processing of his or her commercial operating licence. However, the frequency licence will be subject to the successful approval of the commercial licence.

Pursuant to the provision of Spectrum Trading Guidelines issued by the NCC, radio frequency spectrum is tradable, provided such transactions comply with the eligibility criteria set out in the Guidelines.

Ex-ante regulatory obligations

Which communications markets and segments are subject to ex-ante regulation? What remedies may be imposed?

Historically, the NCC has subjected several communications markets to ex-ante regulation. For instance, in 2013, the NCC undertook a detailed study of the level of competition in the Nigerian communications market and identified the following communications markets for the purpose of ex-ante regulation:

Market segment	Sub-segment
Voice	• mobile telephony (including messaging); and • fixed-line telephony.
Data	• fixed data, retail data transmission services and leased lines; and • mobile data (eg, dongles, data cards, tablets, internet through mobile phone connections, eg, 3G, general packet radio service, Edge).
Upstream segments	• spectrum; • tower sites; • network equipment; • wholesale broadband, internet access; and • wholesale leased lines and transmission capacity.
Downstream segments	• handsets, devices (including the device operating system); and • applications, content (Includes m-commerce).

The identified markets were further divided into wholesale and retail sub-segments as follows:

	Upstream segment			
	Voice segment			
	Data segment			
	Downstream segment			
Services provided as wholesale by an operator to other operators	Wholesale broadband access	Wholesale voice termination on voice network		
Services provided as wholesale by an operator to other operators	Wholesale leased lines and transmission capacity	Wholesale voice termination on fixed network		
Service provided as retail by each individual operator to its consumers		Retail voice access on mobile networks	Retail broadband, internet access on mobile devices	Supply of applications, content and devices
Service provided as retail by each individual operator to its consumers		Retail access on fixed networks	Retail broadband, internet access on mobile devices at fixed location	
Service provided as retail by each individual operator to its consumers			Retail leased lines	

In that study, the NCC determined that MTN held, and Globacom and MTN collectively held significant market power for the mobile voice and upstream segment respectively. As a result of which, the NCC (in exercising its power to remedy market failure or prevent anti-competitive practices, or both, under the Competition Practice Regulations (CPR) imposed on MTN as the operator with significant market power in the mobile voice market the following obligations:

- accounting separation;
- the collapse of on-net and off-net retail tariffs;
- submission of required details to the NCC; and
- a determination of the pricing principle to address the rates charged for on-net and off-net calls for all operators in the mobile voice market.

In respect of the joint dominance collectively held by Globacom and MTN in the market for the upstream segment, the NCC imposed the following obligations on both operators:

- a price cap for wholesale services and a price floor for retail services as to be determined by the NCC on a periodic basis;
- accounting separation; and
- submission of required details to the NCC.

In October 2014, the NCC reviewed its direction requiring MTN to collapse its on-net and off-net retail tariff, by approving a stipulated differential for MTN's on-net and off-net call charges.

In addition, pursuant to regulations 10 to 12 of the Telecommunications Networks Interconnection Regulations 2007 issued by the NCC, one or more communications markets relating to interconnection in which a licensee has been declared dominant by the NCC would trigger the application of ex-ante regulatory obligations. In this regard, the dominant licensee would be obligated to:

- meet all reasonable requests for access to its telecommunications network, in particular, access at any technically feasible points;
- adhere to the principle of non-discrimination with regard to interconnection offered to other licensed telecommunications operators, applying similar conditions in similar circumstances to all interconnected licensed operators providing similar services and providing the same interconnection facilities and information to other operators under the same conditions and quality as it provides for itself and affiliates and partners;
- make available on request to other licensed telecommunication operators considering interconnection with its network, information and specifications necessary to facilitate the conclusion of an agreement for interconnection including changes planned for implementation within the next six months, unless agreed otherwise by the NCC;
- submit to the NCC for approval and publish a reference interconnection offer, describing interconnection offerings, broken down according to market need and associated terms and conditions including tariffs; and
- provide access to the technical standards and specifications of its telecommunications network with which another operator shall be interconnected.

In addition, the dominant licensee shall, except where the NCC has determined interconnection rates, set charges for interconnection on objective criteria and observe the principles of transparency and cost orientation. The burden of proof that charges are derived from actual costs lies with the licensed telecommunications operator providing the interconnection service to its facilities. The dominant licensee may set different tariffs, terms and conditions for interconnection of different categories of telecommunications services where such differences can be objectively justified on the basis of the type of interconnection provided.

A dominant licensee shall also undertake the following.

- Give written notice of any proposal to change any charges for interconnection services in accordance with the procedure set out in the guidelines on interconnection adopted by the NCC and the provisions of the operating licence.
- Offer sufficiently unbundled charges for interconnection, so that the licensed telecommunications operator requesting the interconnection is not required to pay for any item not strictly related to the service requested.
- Maintain a cost-accounting system, which, in the opinion of the NCC, is suitable to demonstrate that its charges for interconnection have been fairly and properly calculated, and provides any information requested by the NCC.

- Make available to any person with a legitimate interest on request, a description of its cost-accounting system showing the main categories under which costs are grouped and the rules for the allocation of costs to interconnection. The NCC, or any other competent body independent of the dominant telecommunications operator and approved by the NCC, shall verify compliance of the dominant telecommunications operator with the cost-accounting system and the statement concerning compliance shall be published by the NCC annually.

Lastly, if interconnection services are not provided through a structurally separated subsidiary, the dominant licensee shall:

- keep separate accounts as if the telecommunications activities in question were in fact carried out by legally independent companies, to identify all elements of cost and revenue on the basis of their calculation and the detailed attribution methods used;
- maintain separate accounts in respect of interconnection services and its core telecommunications services and the accounts shall be submitted for independent audit and thereafter published; and
- supply financial information to the NCC promptly on request and to the level of detail required by the NCC.

It is also pertinent to note that in 2020, the NCC made a determination to impose mandatory accounting separation obligations on Airtel, EMTS, Globacom, MTN, MainOne Cable and IHS (four mobile network operators, a submarine cable operator and a collocation and infrastructure-sharing provider respectively). Although this determination did not identify (or define) any particular communications market, however, one of the key objectives of the NCC in imposing the accounting separation is to identify and prevent any undue discrimination or practices that substantially lessens competition such as cross-subsidisation, margin squeezes, etc. This determination took effect on 15 July 2020 and the licensees subject to the determination are to commence the full rollout of accounting separation by 1 January 2021. In addition, licensees with an annual turnover in excess of 5 billion naira are also subject to an accounting separation obligation pursuant to the Guidelines on the Implementation of an Accounting Separation Framework issued by the NCC.

As at the time of writing, the NCC has engaged a consultant to undertake an independent market study of the level of competition in the telecommunications sector. The study is designed to examine both supply side factors, including infrastructure availability, market concentration, pricing behaviour, access to essential facilities, and the intensity of competition, and demand-side factors such as consumer usage patterns, affordability, switching behaviour and quality of service. Its central objective is to develop an accurate and evidence-based understanding of market dynamics across infrastructure, services, pricing, and emerging segments, and to identify any structural or behavioural concerns that may affect competitive outcomes.

The first phase of the study will focus on voice and data services as well as colocation and infrastructure. Core objectives include assessing market dynamics, identifying the presence of significant market power, strengthening regulatory oversight, and promoting effective competition. The approach will involve a detailed evaluation of market conditions, an assessment of the impact of existing regulatory measures, and structured engagement with operators and consumer groups through both virtual and in person consultations. The outcome is expected to include actionable recommendations to NCC, including the possible introduction of ex ante obligations in areas where market failure or the exercise of market power is established.

Structural or functional separation

Is there a legal basis for requiring structural or functional separation between an operator's network and service activities? Has structural or functional separation been introduced or is it being contemplated?

Under the Federal Competition and Consumer Protection Act 2018 (the Competition Act), the Federal Competition and Consumer Protection Tribunal (FCCPT) is vested with the authority to order the division of any undertaking by the sale of any part of its shares, assets or otherwise upon receiving a monopoly report from the Federal Competition and Consumer Protection Commission (FCCPC). The exercise of this authority is permissible if the monopoly cannot be adequately remedied under any other provision of the Competition Act or is substantially a repeat by that undertaking of conduct previously found by the FCCPT to be a prohibited practice. Furthermore, pursuant to the provisions of the CPR, the NCC in issuing a direction to remedy an abuse of a dominant position or an anticompetitive practice may direct a licensee to make changes in actions or activities including structural separation of services or businesses, as a means of eliminating or reducing the abusive or anti-competitive practice.

Lastly, both the FCCPC and NCC have powers under the Merger Review Regulations 2020 and the CPR, respectively, to impose structural or functional separation between an operator's network and service activities in reviewing mergers that have been identified to present competition concerns within an identified relevant telecommunications market. As of the time of this writing, this power is yet to be exercised with respect to a telecommunications market.

Universal service obligations and financing

Outline any universal service obligations. How is provision of these services financed?

The Universal Service Provision (USP) Fund established by the NCA is geared towards promoting the widespread availability of network services and applications services by encouraging the installation of network facilities and the provision of network services, application services and broadband penetration in unserved, underserved areas or for underserved groups within the community.

The USP Fund is financed from monies appropriated to the USP Fund by the National Assembly; contributions from the NCC are based on a portion of the annual levies paid by licensees; and gifts, loans, aids and such other assets that may from time to time specifically accrue to the USP Fund. In practice, the USP secretariat created by the NCC is responsible for implementing and executing USP programmes and USP projects. The USP board supervises and provides broad policy directions for the management of the USP Fund.

Number allocation and portability

Describe the number allocation scheme and number portability regime in your jurisdiction.

The Numbering Regulations 2008 (the Numbering Regulations) regulate numbers or the assignment thereof. In this regard, the Numbering Regulations provide a regulatory framework for the control, planning, administration, management and assignment of numbers, pursuant to section 128(1) of the NCA. Under the Numbering Regulations, the holder of a communications licence may apply in the prescribed form to the NCC to be assigned numbers (in a set of blocks) by stating:

- the name and contact details of the applicant;
- the licence under which the application is made;
- the services intended to use the assignment;
- the geographic areas for completing calls or transmitting messages to the numbers to be included in the assignment;

- the quantity of numbers requested for inclusion in the assignment;
- any particular blocks requested for inclusion in the assignment;
- the utilisation of the assignment predicted for 12 months after the grant of the assignment;
- the current utilisations of existing assignments to the applicant for the intended services;
- an indication of which, if any, portions of the application are confidential to the NCC;
- any other information that the applicant considers necessary or appropriate to justify the application; and
- any other information that the NCC may, from time to time, require to assess the application.

In making a decision on an application for an assignment, the NCC shall take into account factors including but not limited to:

- any earlier decisions about assignments to the applicant or other licensees for services similar to the intended services;
- any statements in the licence of the applicant about eligibility for providing services or being assigned numbers;
- the usage conditions;
- the digit analysis capabilities of communications networks that are operated in Nigeria;
- the utilisation of the assignment predicted for 12 months after the grant of the assignment over the next three years;
- the current utilisations of existing assignments to the applicant for the intended services; and
- the quantity and fragmentation of blocks that have not been assigned and whether or not the licensee has failed to fulfil an obligation in the Numbering Regulations or the National Numbering Plan, or any other numbering-related obligation under the NCA, has committed a contravention of its regulatory obligation.

The Nigerian Mobile Number Portability Business Rules and Port Order Processes (the MNP Business Rules) sets out the regulatory, legal and technical framework for implementing MNP in Nigeria. The NCC has also issued the Mobile Number Portability Regulations 2014 to provide a regulatory framework for the operation of MNP in Nigeria. Under the terms of the MNP Business Rules, MNP is obligatory for all mobile network operators and is currently available across only global systems for mobile networks (although number portability is intended to be implemented in phases that will cover code division multiple access, fixed networks and location).

Under the MNP Business Rules, MNP is "recipient led". To initiate a porting request, the recipient operator would receive a porting request from a subscriber to port their number. The recipient operator, number portability clearinghouse and donor operator then exchange messages to validate the porting request. Porting is free and is normally completed within 48 hours.

A port request, however, can be rejected for a number of reasons including where the number is not included in the Nigerian numbering plan, where the number was ported within the last 90 days, where the number is not registered in the subscriber information database, and where the number is already subject to a pending port request.

Customer terms and conditions

Are customer terms and conditions in the communications sector subject to specific rules?

Yes, the NCA requires each licensee to prepare a consumer code for their respective customers and such consumer code shall be subject to prior approval and ratification by the NCC. The individual consumer code governs the provision of services and related consumer practices applicable to the licensee. Where the NCC designates an

industry body to be a consumer forum, any consumer code prepared by such industry body shall be subject to prior approval and ratification by the NCC. A consumer code prepared by a consumer forum, the NCC or licensees shall as a minimum contain model procedures for:

- reasonably meeting consumer requirements;
- the handling of customer complaints and disputes including an inexpensive arbitration process other than a court;
- procedures for the compensation of customers in the case of a breach of a consumer code; and
- the protection of consumer information.

The 2024 amendment to the Consumer Code of Practice Regulation (the Consumer Code Regulations) mandates that, within 30 days of approval by the NCC, a licensee must publish its approved Individual Consumer Code on its website, in a national newspaper, and on at least one social media platform of its choice. The approved code shall take effect from the date of its publication.

The provisions of the Competition Act, the NCA and or the CPR may limit the application of certain customer terms and conditions deemed to be undermining consumer rights or anticompetitive in the communications sector. Also, the Enforcement Processes Regulations require every licensee to submit the contents and representations contained in any promotions of products or services to the NCC for its prior approval. Failure to obtain the required approval shall constitute a contravention under these Regulations.

Net neutrality

Are there limits on an internet service provider's freedom to control or prioritise the type or source of data that it delivers? Are there any other specific regulations or guidelines on net neutrality?

The Revised Internet Industry Code of Practice (the Internet Code) issued by the NCC in February 2026 establishes a framework for the preservation of an open internet. It sets out the obligations of Internet Access Service Providers (IASPs) in relation to the management, control and prioritisation of data traffic, while articulating broader requirements to uphold the principles of net neutrality. In this regard, the Internet Code inter alia:

- prescribes measures that seek to guarantee the rights of internet users to an open internet;
- imposes specific transparency obligations on IASPs with respect to performance, technical and commercial terms of its internet access service in a manner that is sufficient for consumers and third parties to make informed choices regarding their uses of such services;
- imposes a positive obligation on IASPs when providing internet access service, to treat all traffic equally, without discrimination, restriction or interference, independently of its sender or receiver, content, application or service, or terminal equipment;
- bars IASPs from blocking lawful content on the internet, unless under the condition of reasonable network management;
- bars IASPs from degrading or impairing lawful internet traffic unless under the condition of reasonable network management;
- bars IASPs from engaging in preferential paid-prioritisation without prior written approval from NCC and limits such practice to what is objectively justified, narrowly defined circumstances consistent with global best practice;
- prescribes the circumstance in which zero-rating is permissible; and
- sets out circumstances that warrant the use of reasonable network management practices.

In addition, the Guidelines for the Provision of Internet Service, the licence for the provision of internet service, the UASL and the WWASL do, however, impose some non-discriminatory obligations on an IASP and holders of these licences. In this regard, an IASP and the respective licensees are required not to show (whether in respect of charges or other terms or conditions applied or otherwise) undue preference to or to exercise undue discrimination against any particular person in respect of the provision of a service or the connection of any equipment approved by the NCC.

Platform regulation

Is there specific legislation or regulation in place, and have there been any enforcement initiatives relating to digital platforms?

The Internet Code introduces an expanded engagement framework for Online and Digital Communications Platforms and Digital Service Providers. Under Chapter Eight of the Internet Code, an Online and Digital Communications Platform is defined as any medium, process, or method that permits or facilitates communications services, whether directly or through an intermediary. A Digital Service Provider is defined under the Internet Code as any entity that provides digital services through a digitalised medium offering communications service via a licensed Nigerian mobile communications network or to subscribers located in Nigeria. These definitions indicate an intention to extend NCC's regulatory engagement to a wide range of internet-based platforms, potentially including global services that operate over, but do not own or control, underlying telecommunications infrastructure.

Within this framework, the Internet Code imposes a set of baseline governance obligations on such platforms. These include the requirement to establish and maintain Community Rules or Guidelines aligned with section 146 of the NCA, submit these rules to the NCC within a specified period, provide biannual compliance renditions in a prescribed format, and designate a responsible officer to serve as a governance interface with the NCC. While framed as engagement measures, these requirements introduce structured compliance expectations aimed at promoting transparency, accountability, and effective management of harmful or unlawful content.

Additionally, the National Information Technology Development Agency (NITDA) issued the Code of Practice for Interactive Computer Services Platforms/Internet Intermediaries (Code of Practice for Computer Platforms). The Code establishes best practices for online platforms and internet intermediaries operating in Nigeria and aims to enhance the safety of the digital ecosystem for both Nigerians and non-Nigerians within the country. Additionally, it outlines measures to combat online harms, including disinformation and misinformation, and adopts a co-regulatory approach to implementation and compliance.

The Code of Practice for Computer Platforms imposes several obligations on online platforms and internet intermediaries, including:

- compliance with Nigerian laws, including refraining from deploying or modifying their platforms in a manner that undermines or interferes with the enforcement of the law;
- adherence to court orders requiring the provision of information or assistance to authorised government agencies for the purposes of investigation, cybercrime prevention, or prosecution; and
- prompt removal of unlawful content within 48 hours of receiving a takedown notice from an authorised government agency.

In addition, platforms categorised as "Large Service Platforms" – those with more than one million registered users – must also:

- incorporate as a legal entity in Nigeria;
- maintain a physical contact address within Nigeria;
- appoint a liaison officer to serve as a communication channel between the platform and the government;
- ensure adequate human oversight of automated tools to enhance accuracy, mitigate bias and discrimination, and uphold users' freedom of expression and privacy; and
- provide users, upon request, with information on why they receive specific advertisements.

Furthermore, NITDA reserves the right to extend these obligations to platforms with fewer than one million registered users if deemed necessary to safeguard Nigeria's sovereignty, security, public order, foreign diplomatic relations or national integrity.

As of the time of this writing, there have been no recorded enforcement actions under the Code of Practice for Computer Platforms.

Next-Generation-Access (NGA) networks

Are there specific regulatory obligations applicable to NGA networks? Is there a government financial scheme to promote basic broadband or NGA broadband penetration?

Yes, in addition to the application of regulatory obligations ordinarily applicable to other categories of communications licensees, the holder of the WWASL will be required by the licence to, among other obligations, roll out services at least as follows:

- three state capitals in year one;
- four additional state capitals in year two;
- six additional state capitals in year three;
- 12 additional state capitals in year four;
- 12 additional state capitals in year five; and
- two-thirds of all local government headquarters in the remaining licence period.

Also, a WWASL requires the holder to supply customer premises equipment adapted in such a way as to reasonably accommodate the needs of hearing-impaired individuals.

Notwithstanding the application of the USP fund for the facilitation of broadband penetration in Nigeria, there are other NCC-initiated projects such as the Wire Nigeria project aimed at facilitating the rollout of fibre-optic cable infrastructure in which subsidies are based on per kilometre of fibre and incentives to encourage the rapid deployment of non-commercially viable routes are provided. The State Accelerated Broadband Initiative is aimed at stimulating the demand for internet services and driving affordable home broadband prices where subsidies on terminal equipment based on broadband infrastructure deployed in state capitals and urban and semi-urban centres are provided to operators. Also, under the ongoing Open Access Model for Next Generation Fibre Optic Broadband Network, there shall be one-off government financial support to facilitate the rollout of the infrastructure companies. This 65 billion naira financial support will be based on meeting pre-identified targets at certain points in time during the rollout of the broadband infrastructure phase.

Data protection

Is there a specific data protection regime applicable to the communications sector?

Part VI of the General Code (in appendix I of the Consumer Code Regulations) sets out the responsibilities of a licensee in the protection of individual consumer information. These responsibilities stipulate that a licensee may collect and maintain information on individual consumers reasonably required for its business purposes and that the collection and maintenance of such information on individual consumers shall comply with the following principles:

- fairly and lawfully collected and processed;
- processed for limited and identified purposes;
- relevant and not excessive;
- accurate;
- not kept longer than necessary;
- processed in accordance with the consumer's other rights;
- protected against improper or accidental disclosure; and
- not transferred to any party except as permitted by any terms and conditions agreed with the consumer, as permitted by any permission or approval of the NCC, or as otherwise permitted or required by other applicable laws or regulations.

Licensees are required by the Consumer Code Regulations to adopt similar provisions guaranteeing the same level of protection (or higher) in the production of their own individual consumer codes.

In addition, licensees are required by these responsibilities to meet generally accepted fair information principles including:

- providing notice as to what individual consumer information they collect, and its use or disclosure;
- the choices consumers have with regard to the collection, use and disclosure of that information;
- the access consumers have to that information, including to ensure its accuracy;
- the security measures taken to protect the information; and
- the enforcement and redress mechanisms that are in place to remedy any failure to observe these measures.

Furthermore, Nigeria has enacted the Nigeria Data Protection Act 2023 (the NDPA) and the NDPA General Application and Implementation Directive 2025 (GAID). The NDPA and GAID governs the processing of personal data in Nigeria, outlining the lawful basis for such processing, the rights of data subjects, the obligations of data controllers, and the conditions under which cross-border transfers of personal data are permissible. The NDPA and GAID are is enforced by the Nigerian Data Protection Commission (NDPC) and applies to all sectors of Nigeria's economy, including the communications sector.

In February, the NDPC and the NCC executed a memorandum of understanding (MoU) aimed at enhancing the protection of personal data and privacy within the telecommunications sector. The MoU establishes a collaborative framework to support regulatory coordination, strengthen compliance mechanisms, and promote the effective safeguarding of data subjects' rights across the industry.

Cybersecurity

Is there specific legislation or regulation in place concerning cybersecurity or network security in your jurisdiction?

Yes. The Cybercrimes Act 2015 and the and the Cybercrimes (Amendment) Act 2024 provides a unified and comprehensive legal framework for the prohibition, prevention, detection, prosecution and punishment of cybercrimes in Nigeria. The Cybercrimes Act also ensures the protection of critical national information

infrastructure and promotes cybersecurity and the protection of computer systems and networks, electronic communications, data and computer programs, intellectual property and privacy rights.

In addition, the National Information Systems and Network Security Standards and Guidelines 2013, and the Nigerian Cybersecurity Framework 2019 issued by NITDA prescribe mandatory minimum standards on seven primary areas of network security and cyber forensics, which are:

- categorisation of information;
- minimum security requirements;
- intrusion detection and protection;
- protection of object-identifiable information;
- securing public web servers;
- system firewall; and
- cyber forensic.

The Framework goes on to further recommend best practice guidelines for public- and private-sector organisations for instituting measures for enshrining cybersecurity culture and enthronement of cyber-resiliency in Nigeria.

Big data

Is there specific legislation or regulation in place, and have there been any enforcement initiatives in your jurisdiction, addressing the legal challenges raised by big data?

Currently, there is no specific legislation in Nigeria that directly addresses big data. However, the Cybercrimes Act 2015 has as one of its primary objectives the promotion of cybersecurity and the protection of computer systems, networks, electronic communications, data, computer programs, intellectual property and privacy rights. Although the Act does not explicitly use the term "big data", it defines "data" as "representations of information or concepts that are being prepared or have been prepared in a form suitable for use in a computer". This definition encompasses various forms of digital data, including big data. The Cybercrimes Act imposes several obligations on public and private entities that provide communication services to users through computer systems, electronic communication devices, mobile networks and entities that process or store computer data on behalf of such communication services or users. These obligations relate to the retention and confidentiality of data. However, we are not aware of any enforcement initiatives that have occurred since the enactment of the Cybercrimes Act in 2015 regarding big data.

Data localisation

Are there any laws or regulations that require data to be stored locally in the jurisdiction?

Yes. The Guidelines on Nigerian Content in ICT issued by NITDA require information and communications technology companies and data and information management firms in Nigeria to host, respectively, all subscriber and consumer data and government data locally within the country and further provide that they shall not for any reason host any government data outside the country without express approval from NITDA and the Secretary to the government of the federation.

In addition, both the NDPA and GAID establish the conditions governing the permissible cross-border transfer of personal data in Nigeria.

Key trends and expected changes

Summarise the key emerging trends and hot topics in communications regulation in your jurisdiction.

Recent developments in Nigeria's communications regulatory landscape reflect a clear transition toward a more structured, forward-looking, and innovation-oriented governance regime. The NCC, alongside other sector regulators, is actively reshaping the policy environment to respond to rapid technological change, evolving market structures, and the growing complexity of digital services. Central to this trajectory are ongoing reforms in spectrum management, licensing frameworks, competition oversight, infrastructure development, and digital platform regulation, all of which collectively signal a regulatory pivot toward greater flexibility, market responsiveness, and alignment with global best practices.

A key emerging trend is the modernisation of spectrum policy and broader telecommunications governance frameworks. The NCC's Draft Spectrum Roadmap (2025–2030) underscores a strategic focus on efficient spectrum utilisation, investment stimulation, improved quality of service, and long-term technological preparedness. In parallel, efforts to review and update the National Telecommunications Policy 2000 highlight a recognition that the existing framework requires recalibration to address contemporary challenges, including competition dynamics, cybersecurity, internet governance, infrastructure deployment, and universal access. These reforms are complemented by increasing regulatory emphasis on licence-exempt and shared spectrum regimes, particularly in bands such as 60 GHz and the proposed lower 6 GHz band, which are intended to facilitate broadband expansion, support next-generation wireless technologies, and lower barriers to entry for innovative connectivity solutions while maintaining technical safeguards against interference.

Another significant development is the growing prominence of non-terrestrial networks and alternative connectivity architectures. The NCC's consultation on Satellite Direct-to-Device connectivity reflects an emerging regulatory focus on integrating satellite and terrestrial networks to enhance coverage, resilience, and emergency communications capability, particularly in underserved and remote areas. This is reinforced by national space infrastructure initiatives, including plans to deploy new communications satellites to replace Nigeria's ageing orbital assets, thereby strengthening national capacity for resilient, space-based connectivity. These developments collectively illustrate a broader policy orientation toward hybrid connectivity models that combine terrestrial, satellite, and wireless technologies to achieve universal service objectives and digital inclusion.

Infrastructure expansion and market structure reform remain central policy priorities. Large-scale initiatives such as Project BRIDGE, designed to deploy a nationwide fibre backbone through public–private partnership arrangements, underscore the government's commitment to accelerating broadband penetration and supporting economic growth through digital infrastructure investment. At the same time, increasing regulatory scrutiny of market consolidation and infrastructure ownership, including transactions involving major tower companies and mobile network operators, reflects a cautious approach to ensuring that efficiency gains from consolidation do not undermine competition, consumer welfare, or long-term sector resilience.

In parallel, there is an observable shift toward more proactive regulation of digital platforms, data governance, and online markets. Enforcement actions and judicial decisions involving major technology platforms highlight heightened regulatory scrutiny of cross-border data transfers, platform accountability, and consumer protection standards. These developments are reinforced by emerging policy initiatives aimed at regulating online harms, strengthening content governance, and enhancing transparency obligations for digital intermediaries. Similarly, the Federal Competition and Consumer Protection Commission (FCCPC) has introduced draft regulatory instruments under the Competition Act, signalling a more assertive enforcement posture in relation to digital markets, including

advertising technologies, influencer marketing, and data-driven commercial practices. Together, these initiatives indicate a broader move toward co-regulatory frameworks that combine statutory oversight with platform responsibility and structured stakeholder engagement.

A particularly important institutional and regulatory innovation is the introduction of the NCC's General Authorisation Framework. This framework represents a significant evolution in licensing philosophy, introducing flexible mechanisms to support experimentation and staged market entry for emerging technologies. It establishes three principal instruments: Proof of Concept (PoC), Regulatory Sandbox, and Interim Service Authorisation (ISA), each designed to accommodate different stages of innovation maturity. PoCs enable controlled, non-public testing of feasibility and functionality; Sandboxes permit limited real-world deployment under regulatory supervision; and ISAs provide temporary authorisation for pilot commercial services pending the development of formal licensing categories. Across all instruments, the framework embeds strict requirements relating to reporting, consumer protection, data privacy, cybersecurity, and regulatory oversight, while preserving the Commission's discretion to amend, suspend, or revoke authorisations where necessary to protect market integrity and public interest.

Complementing this innovation framework are clearly defined eligibility criteria, technical and financial disclosure obligations, and monitoring mechanisms designed to ensure regulatory accountability. Applicants must demonstrate corporate registration, technical competence, financial capacity, and compliance with applicable laws, including the Nigerian Communications Act 2003 and the Nigerian Data Protection Act 2023. The framework also imposes mandatory administrative fees and potential spectrum and numbering charges, while reinforcing obligations for ongoing reporting, audit access, and compliance with consumer disclosure requirements. Importantly, it provides a structured pathway for transitioning successful experiments into formal licensing regimes, thereby linking regulatory experimentation directly to long-term market development.

Taken together, these developments illustrate a communications regulatory environment in Nigeria that is increasingly adaptive, technologically responsive, and institutionally coordinated. The convergence of spectrum reform, infrastructure expansion, satellite and hybrid connectivity strategies, digital platform regulation, competition enforcement, and innovation-friendly licensing frameworks reflects a deliberate effort to balance market development with consumer protection and systemic stability. This evolving regulatory architecture positions Nigeria's communications sector as a key enabler of the digital economy, while simultaneously strengthening its capacity to manage the risks and opportunities associated with rapid technological change.

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